Master Agreement
For

TRANSITION SERVICES AGREEMENT

Between

Georgia Technology Authority

And

Everton Technologies

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MASTER AGREEMENT
for
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AGREEMENT

This Master Agreement for GETS Ready Services (including all ,exhibits and attachments hereto, this "Master Services Agreement for MSA), dated as of, **February 4, 2020** (the "Commencement Date") ,is made by and between the **Georgia Technology Authority** , whose principal place of business is located at 47 Ferity Avenue, Atlanta, Georgia, 30334, and **Everton Technologies** whose principal place of business is located at 6303 Barfield Road, Atlanta, GA 30328 ("Service Provider') (each, a "Party" and collectively, the 'Parties")

1. **Background** and introduction.

In 2016, GTA qualified several service providers, including Service Provider, as part of its Georgia Enterprise Technology Services (GETS) consolidated services platform. The GETS platform provides consolidate and outsourced IT services to a core group of Georgia Executive Bfanch ag0ncies, pursuant to GTA s statutory mandate

GTA is entering into this MSA as part of its "GETS Ready Program™. This program an extension of GTA's efforts under the RFQC, facilitates the accelerated procurement by eligible entities (other than GTA'S Executive Branch agencies) of Service's similar to those within GTA's GETS platform, by allowing such entities to contract directly with theGETS qualified service providers rather than with GTA. In addition to establishing the GETS Ready Program and confirming each service provider's continuing qualification thereunder, GTA will provide governance over the contracted to Conformance to through MSA's scope and terms.

1.1 Framework.

(a) Customers under GETS Ready **Program.** A "Customer" may be any state or local government body or entity within the State of Georgia. GTA may publish from time to time eligibility requirements for organizations to be Customers participatingin thru GETS Ready Program. As part of GTA's governance role described above, GTA may discuss with Customers the status of this MSA and Service Provider's general performance under the GETS Ready Program

(b) Master Services **Agreement.** This MSA sets found terms and conditions between GTA and Servicers Provider with respect to serves that may be provided by Service Provider to Customary under the GETS Ready Program

(c) Customer Purchase Agreements. A Customer may purchase from Service *Provider* the services *described* in Levels, Pricing) through an agreement between such Customer and Service Provider under this MBA (each, a Customer Purchase Agreement").may be updated or replaced by mutual written agreement of the Parties. For clarity, such changes will not impact any Customer Purchase Agreements then effect (except to the extent the Customer and Service Provider mutually agree t0 amend their agreement to implement any such changes).

(d) A farm of a Customer Purchase Agreement is set forth in Customer Purchase Agreement will describe the services being purchased by the applicable Customer from Service Provider, including corresponding service levels and pricing.

(R) Change Orders. After execution of a customer Purchase Agreement, Service Provider and the applicable Customer may add, remove, or change services' from Chose available under such agreement by executing a change order, a suggested form of

(e) Customer Participation Acknowledgement; Customer Responsibility. As a precondition to the effectiveness of any Customer Purchase Agreement, service Provider shall obtain from the Customer and deliver to GTA an executed Customer Participation Acknowledgement in the form of Attachment A Form of Customer Participation Acknowledgement) to Exhibit 3 Form of Customer (the "Customer Participation Acknowledgement"). Service Provider *agrees* that the *Customer executing a* Customer Purchase Agreement shall be acting solely on its own behalf and that neither GTA nor any other entity, including any other Customer, shall be liable under or with respect to such Customer Purchase Agreement or any of the executing Customer's (are Service Provider's) obligations in connected therewith.

1.2 MSA Attachments.

This MSA includes each of the following attachments, each of which is incorporated into this MSA by this reference.

Exhibit 1 *Catalogue of* Services. *Service* Levels, Pricing
Exhibit 2 Governance
Exhibit 3 Foxit of Customer Purchase Agreement
- Attachment A Form of Customer Participation Acknowledgement
- Attachment B Form of Change Order
- Attachment C Customer Rules
- Attachment D NIST-800 53 Worksheet
- Attachment E Insurance

Exhibit 4 E-Verify Affidavit Service Provider
Exhibit 5 E-Verify Affidavit Subcontractor
Exhibit 6 Drug-Free Workplace Affidavit
Exhibit 7 Automated Clearing House (ACH) Authorization
Exhibit 8 Administrative Document's
- Attachment A Certificate of Insurance
- Attachment B Taxpayer Identification
- Attachment C Georgia Department of Revenue Tax Lien Certification
- Attachment D Service Provider Affirmations — Scrutinized Companies

2. MSA Term and Termination.

2.1 Term.

The term of this MSA shall begin on the Effective Date and shall expire on Oct 15, 2022, unless earlier terminated by GTA in accordance with this MSA.

2.2 Renewal.

No later than Ninety (90) days prior to the end of the current term, GTA may renew this MSA by providing written notice to Service Provider. GTA shall have two (2) such consecutive renewal options, each for up to six (6) months at GTA's sole discretion.

2.3 Termination by GTA for Cause.

GTA has the right to terminate this MSA for cause, In whole or in part, if:

(a) Service Provider breaches or is in default of any material obligation of this MSA, which default is incapable of cure. or which, being capable of cure, has not been cured within thirty (30) days after Service Provider's receipt of notice of such default (or such additional cure period as GTA may authorize);

(b) Service Provider suspends or terminates its operation of business, becomes subject to any bankruptcy or insolvency proceeding under federal or state law, or becomes unable to pay its obligations ae they accrue; or

(c) i) Service Provider is debarred or suspended from performing services on anypublic contracts; (ii) any certifications or licenses as may be required hereunder are revoked or no longer In effect for any reason; (iii) Service Provider fails to comply with confidentiality laws or provisions; or (iv) Service Provider furnishedany statement, representation or certification In connection with this MSA or any applicable bidding process which is materially false, deceptive, incorrect or incomplete.

2.4 *Termination* for Convenience.

GTA has the right to terminate this MSA for convenience upon thirty (30) days' prior writtennotice to Service Provider, at no cost or penalty to GTA.

2.5 **Return of Property.**

Upon termination of this MSA (or, if later, any applicable Customer Purchase Agreement), each Party shall cease using and promptly *return la* the other Party (or destroy) all papers, material and other property of the other Party then in its possession and applicable to this MSA; provided, however, GTA shall be entitled to retain material8 Associated with any continuing Customer Purchases Agreement and appropriate archival materials associated with the GETS Ready Program, including materials related to Service Provider.

2.6 Effect of Terminatory.

No new' Customer Purchase Agreement may be executed after the termination or expiration of this MSA. However, the termination or expiration of this MSA shall not cause the termination or expiration of any Customer Purchase Agreement, which shall continue in force and affect (and the provisions of this MSA will be deemed to remain in affect with respect to such Customer Purchase Agreement) until such Customer Purchase Agreement terminates Or expires in Candance with its terms; provided,, that no new Change Orders may be executed under such Customer Purchase Agreement unless expressly approved by GTA in writing. For the avoidance of doubt, unless GTA has stipulated that this MSA will terminate with respects to any outstanding Customer Purchase Agreement, the Fee will remain due for any Customer Purchase Agreement that survives the termination or expiration Do this MSA.

3. Fee

3.1 General.

Service Provider agrees to remit to GTA a quarterly fee as specified in this Section (the Fee") for administrative services performed by GTA with respect to this MSA. Service Provider further acknowledges that its charges under the Customer Purchase Agreements shall be sufficient to compensate Service Provider for its performance of the services and its obligation to pay the Fee to GTA. As such, Service Provider has factored the Fee into its pricing for the Customer Purchase Agreement's and shall not separately itemize, invoice or charge any Customer for payment or reimbursement of all or any portion of the Fee.

3.2 Calculation and Payment of Fee.

The amount of the Fee shall equal two- and one-half percent (2.5%) of the total dollar amount invoiced by Service Provider to Customers under all Customer Purchase Agreements in the aggregate during the applicable calendar quarter (excluding sales taxes and adjusted for applicable credits or refunds). Service Provider must pay to GTA the Fee with respect to each calendar quarter on or before the last day of the month immediately following the end of such quarter (the "Latest Fee Payment Date"), as follows'

Calendar Quarter	Months	Latest Fee Payment Date
Quarter1	Jan – Mar 31	30-April
Quarter2	Apr-Jun30	31-July
Quarter3	Jul-Sep 30	31-October
Quarter4	Oct-Dec31	31-January

Fee payments shall be submitted to GTA by Automatic Clearing House (ACH), for receipt hot later than the Latest Fee Payment Date. Service Provider must complBt6 and submit the form authorizing electronic payment, included as Exhibit 7 (Automated Clearing House (ACH) Authorization, as such instruction may be updated from time to time by GTA upon notice to Service Provider.